

26NWCV01169 26NWCV01169

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-06-30

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CR%2C06%2F30%2F2026

Source SHA-256: 54a2c8e2dc51150b6327bf47b47a8d461854a1770858a737a8de36a51761fda3

Case Number: 26NWCV01169 Hearing Date: June 30, 2026 Dept: R

#14

ALTERO, INC. v. GREENFIELD, ET AL.

CASE NO.: 26NWCV01169

HEARING: Tuesday, June
30, 2026, at 9:30 AM

Defendant ADAM LUJAN GREENFIELD's Motion to Set Aside
Default is GRANTED.

Defendant's Proposed Answer attached as Exhibit C to Adam
Greenfield's Declaration is NOT DEEMED SERVED AND FILED as of
this hearing. As noted by Plaintiff, Defendant's
proposed Answer is deficient. Defendant asserts only a general denial
answer which is insufficient in response to a verified unlawful detainer
complaint. Defendant's Answer must assert specific denials.

Defendant is ORDERED to FILE and SERVE a proper Answer
within 10 days from the Court's issuance of this Order.

Opposing Party to give notice.

Background

On April 2, 2026, Plaintiff ALTERO, INC. ("Plaintiff") filed
this unlawful detainer action against Defendants ADAM LUJAN GREENFIELD

("Defendant"); ALL UNKNOWN OCCUPANTS, TENANTS, and SUBTENANTS; and DOES 1 through 20, inclusive.

Defendant's default was entered on May 4, 2026. As of July 1, 2026, default judgment has not been entered.

Defendant timely filed the subject Motion on May 15, 2026.

Defendant now moves to set aside the default under CCP §473(b). In support of the Motion, Defendant submits his declaration, which states, under penalty of perjury: "I was under the impression that my attorney was going to file the response or any other motions necessary for my representation." (Greenfield Decl., ¶ 4.)

Legal Standard

CCP § 473(b), states that "[t]he court may...relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect."

Application for

this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted. (Id.)

Discussion

Defendant asserts

that he was under the impression his attorney would file a response to Plaintiff's Complaint. Defendant contends he hired Chris Brooks to represent him in this matter. (Greenfield Decl., ¶ 3.) However, the Court's records do not indicate Mr. Brooks represented Defendant in this matter. Furthermore, Mr. Brooks email signature indicates his occupation is "customer service" and that he works for HFCI LLC a "Client Solutions Partner." (Greenfield Decl., Ex. B.) Lastly, even assuming Mr. Brooks is an attorney, he has not submitted any affidavit showing fault.

However, based

Defendant's declaration, it appears Defendant sought legal help respond to Plaintiff's Complaint. The Court finds it reasonable that Plaintiff, acting in pro per, believed Mr. Brooks or another individual working at HFCI LLC would

file a responsive pleading on his behalf. Indeed, Mr. Brooks maintained that, “Per the attorney’s notes and with our legal team currently handling the case...” (Greenfield Decl., Ex. B.) The Court finds excusable neglect.

The policy of hearing cases on their merits is well-established. (See, e.g., Berman v. Klassman (1971) 17 Cal.App.3d 900.) Given the liberality associated with Motions to Set Aside under CCP §473(b), the Court finds Plaintiff’s Declaration sufficient to warrant to relief. The law favors trials on the merits. (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 980.)

Separately, the Court admonishes Defendant for the following:

First, Defendant purports he learned of cases against him on or about May 9, 2026, once he received notice of default. Not so. Plaintiff personally served Defendant on April 17, 2026. (See Plaintiff’s Ex. 1.) Defendant’s Exhibit A also confirms this fact, “Adam Greenfield was served ‘personally’ on April 17, 2026...” (Greenfield Decl., Ex. A.)

Second, Plaintiff asserts Defendant never served Plaintiff with the moving papers. Defendant failed to provide proper service for the instant motion.

Defendant is reminded to properly file and serve all further papers. Should Defendant make any further misrepresentations to the Court, monetary sanctions will be considered and imposed.

Defendant’s Motion is GRANTED. The May 4, 2026, default is SET ASIDE and VACATED.

Plaintiff’s Request for Judicial Notice is GRANTED. (Evid. Code § 452(d),(h).)